

TERMS AND CONDITIONS FOR THE PROVISION OF THE POWER FLUSHING SERVICE
POWER FLUSHING SERVICE AGREEMENT BY ORDERING THE POWER FLUSHING
SERVICE AND ACCEPTING OUR QUOTATION, YOU ACCEPT THE FOLLOWING TERMS
AND CONDITIONS. PARTICULAR ATTENTION IS DRAWN TO CLAUSES 7 (RISK NOTICE
AND WAIVER), 13 (DATA PROTECTION NOTICE) AND 14 (MARKETING). PLEASE READ
THESE CAREFULLY.

1. POWER FLUSHING

1.1. The Power Flushing Service involves a Service Engineer flushing or cleansing your Central Heating System at high velocity but low pressure, using water, with cleansing and mobilising agents added, in order to remove any accumulated sludge, corrosion, deposits and scale in older Central Heating Systems and to remove excess flux, swarf and other debris from newly installed Central Heating Systems.

1.2. While the Power Flushing Service is, as far as TMG Plumbing & Heating Services is aware, currently the most successful method commercially available of removing sludge and iron oxide for the purposes of enhancing the thermal efficiency of a Central Heating System, the effectiveness of the Power Flushing Service will depend on the condition of your Central Heating System and no guarantee is given by TMG Plumbing & Heating Services that the Power Flushing Service will be effective in cleaning your particular Central Heating System.

1.3. Subject to clause 6, the Service Engineer will assess whether the Power Flushing Service can be carried out on your Central Heating System. The Power Flushing Service is not suitable for microbore central heating or gun barrel systems.

1.4. The Service Engineer may, prior to or during the Power Flushing Service identify parts or component failure or potential failure. The Service Engineer will provide you with a verbal update on the fault with the Boiler and/ or Central Heating System and the costs involved in repairing the Boiler and/or Central Heating System. This may include the costs of providing new parts or components for the Boiler and/or Central Heating System. The Service Engineer will also provide you with an estimate of the time it will take to repair the Boiler and/or Central Heating System. Please be aware that sometimes it may not be possible to carry out the repair during the initial diagnosis visit. Title to the replacement parts and/or components will only pass to you when you have paid TMG Plumbing & Heating Services for them.

2. SCOPE OF SERVICE

2.1. A Service Engineer will carry out the Power Flushing Service on your Central Heating System in accordance with the following safety standards: VDI 2035 The steps involved in the procedure are outlined at clause 2.3 below.

2.2. For the avoidance of doubt, the Power Flush Service does not include a safety check of your Central Heating System and/or Boiler.

2.3. The Service Engineer will do the following as part of the Power Flushing Service:

- **Initial Inspection:** Our technicians assess your heating system to determine the extent of the buildup.
- **Analysis of the Heating Water:** We take a sample of the water of the heating system and analyse it for corrosion and pH levels. This gives us an indication of the current state of the heating system.
- **Filtration of the System:** Using a filtering machine, we filter all the sludge, metal particles and debris from the heating system pipes and radiators or underfloor heating. Generally we don't need to drain your heating system or use cleaning chemicals to clean the system but occasionally this may be necessary depending on the extent of sludge and debris built up.
- **System Flushing:** Using the filtration machine, we circulate clean water at high velocity but low pressure to clean the system thoroughly.
- **Magnetic Filtration:** Our advanced magnetic filters remove metal particles that can cause corrosion.
- **System Demineralisation:** The heating system water is then topped up if needed and run through a demineralising machine that removes any further contaminants in the water and regulates the levels so that it is non corrosive to prevent future buildups.
- **Final Check:** We perform a comprehensive check to ensure your system is clean and operating efficiently.

Neither TMG Plumbing & Heating Services nor the Service Engineer give any commitment that they will identify that any additional work or replacement parts for your Boiler and/or Central Heating System may be required or accept any liability for any damage or loss whatsoever which may result from any failure to identify any requirement for additional work or replacement parts or any other deficiency or fault in your Boiler and/or Central Heating System.

3. COMMENCEMENT AND CANCELLATION

3.1. The Power Flushing Agreement may also provide for a repair to the Boiler and/or Central Heating System and may include the provision of spare parts or components.

3.2. Commencement: When you order the Power Flushing Service TMG Plumbing & Heating Services check against you and perform a full eligibility check on your Boiler and/or Central Heating System. If we choose to carry out either or both of these checks

and they are satisfactory to TMG Plumbing & Heating Services, this Power Flushing Service Agreement will come into effect from the later of (i) the date that we notify you that the credit check is satisfactory to us and (ii) the date that we notify you that your Boiler and/or Central Heating System is suitable for the Power Flushing Service. Where the credit check and/or full eligibility check on the Boiler and/or Central Heating System are satisfactory to TMG Plumbing & Heating Services, the Service Engineer will carry out the Power Flushing Service on the date agreed between you and TMG Plumbing & Heating Services. The Power Flushing Service will be carried out during normal working hours (8am to 6pm Monday to Friday, excluding bank holidays and public holidays in Ireland) unless otherwise agreed between the Parties. TMG Plumbing & Heating Services will not be obliged to carry out the Power Flushing Service: (a) unless it is satisfied with your credit check results; (b) unless and until payment for the Power Flushing Service Agreement has been made in accordance with the payment provisions of these Terms and Conditions and any appropriate direct debit form duly signed by you; and (c) unless it is satisfied that no Health and Safety issue exists which may mean it is inappropriate, unsafe or otherwise unsuitable for the Power Flushing Service to proceed or continue.

3.3. Your Responsibilities: It is your responsibility to provide the Service Engineer with the necessary access to the Property at the time of our appointment(s) to carry out the Power Flushing Service. If we are not able to gain access to your Property at the time of any appointment, because you are not available to provide access we will not be able to carry out the Power Flushing Service and it is your responsibility to arrange another appointment. If we are not able to gain access to your Property at the time of an appointment, we will inform you that we were not able to carry out the Power Flushing Service for this reason and we will charge you a cancellation fee equal to €150. You are also responsible for making sure that (a) we can safely access your Property, which includes providing safe access to your Boiler and/or Central Heating System; and (b) there is sufficient gas in the system to allow the Power Flushing Service to be completed (applicable to pre- pay meters only). In circumstances where we are not in a position to proceed with the Power Flushing Service due to (a) or (b), we will inform you of this and charge you a cancellation fee equal to €150. If the issue preventing the Power Flushing Service from proceeding or continuing is removed and the appointment is rescheduled by you within 10 working days of the most recent visit by the Service Engineer, we will refund the cancellation fee of €150. It is also your responsibility to take care in or around areas where work is taking place during provision of the Power Flushing Service and to ensure that any children or animals in the Property are kept away from any area where work is being carried out or equipment is being stored and all areas in between.

3.4. Cancellation: You may cancel your Power Flushing Service without charge and for no reason up to 24 hours before the appointment is due to be carried out by calling our customer service representatives on 051 577089 or by email to info@tmgplumbing.ie.

The appointment for the Power Flushing Service may be rescheduled by you at the time of cancelling it, or at a later date, to a new date and time agreed with us. If you cancel less than 24 hours before the Power Flushing Service is due to be carried out, or if the Service Engineer cannot access your Property to carry out the Power Flushing Service at and on the agreed time and day, we will charge you a cancellation fee equal to €150 (the “**Cancellation Fee**”). You will not be charged the Cancellation Fee if you cancel with less than 24 hours’ notice:

- within fourteen (14) days of first signing up online or on the phone; or
- within thirty (30) days of first signing up via one of our doorstep sales agents (the “**Cooling Off Period**”).

If your Power Flushing Service has been carried out with your agreement before the expiration of the Cooling Off Period, you will be responsible for payment of the price as notified to you in accordance with clause 5.1.

4. PROVISION OF SPARE PARTS

4.1. The Service Engineer may, prior to or during the Power Flushing Service identify parts or component failure or potential failure. The Service Engineer will advise you of the cost of replacement of any such parts or components and if necessary, but subject to your authorisation, will supply and fit adequate replacement parts or components, subject to their availability. Title to the replacement parts and/or components will only pass to you when you have paid TMG Plumbing & Heating Services for them.

4.2. Replacement parts or components may not be the same as the parts being replaced and may not be from the original manufacturer.

4.3. We will not be responsible for any delay in the provision, or unavailability, of spare parts by suppliers or manufacturers.

4.4. Any parts or components which are removed from your Boiler and/or Central Heating System by the Service Engineer will be left with you and not removed from the Property. You should retain such part or component until you are satisfied that the new part or component has eliminated the fault and to allow for re-testing in the event of a further fault arising with the Boiler and/or Central Heating System.

4.5. For the avoidance of doubt, we will not fit replacement parts or components not supplied by us.

4.6. If the Service Engineer needs to leave the Property to source replacement components and/or parts, the quote for these replacement components and/or parts, and any additional labour charges (if applicable) must be approved by you in writing before the Service Engineer will return to fit the replacement components and/or parts.

5. PRICE PAYABLE BY YOU

5.1. The price payable by you for the Power Flushing Service is as set out on the quotation sent to you by TMG Plumbing & Heating Systems at the date of the service. All prices quoted are inclusive of VAT at the applicable rate from time to time.

5.2. If at your request, we return to your home to remove any air locks or leaks on the Central Heating System or to do any other work before or after the Power Flushing Service has been carried out (including repair work), we will charge you for any such additional labour in 15 minute units. You can check the current applicable rates on TMG Plumbing & Heating Services by calling our customer contact team on the telephone number provided on the Order Form.

5.3. The cost of replacement parts or components (where required) will be in added to the price of the Power Flushing Service. All charges under the Power Flushing Service Agreement will be paid up front to TMG Plumbing & Heating Services (except as outlined in clause 6.1 and 6.5 below). The Customer is required to pay for the work carried out by the date advised on the relevant TMG Plumbing & Heating Services invoice.

6. PAYMENT TERMS

6.1. Subject to clause 6.5, you may pay for the Power Flushing Service and any applicable repairs/parts by one of the following methods:

a) by paying in full by way of one lump sum payment by credit/debit card at the time of booking the Power Flushing Service;

b) by paying an initial instalment as specified in the Order Form to these Terms and Conditions by credit/debit card at the time of booking the Power Flushing Service and by paying the balance in instalments by bank transfer or credit/debit card payment on completion of the job.

c) by paying an initial instalment as specified on the Order Form to these Terms and Condition by credit/debit card at the time of booking the Power flushing Service and by paying the balance following receipt of your TMG Plumbing & Heating Services invoice.

6.2. If you avail of the option to pay for the Power Flushing Service by instalments, you may terminate the arrangement at any time by paying the full outstanding amount payable as stated in the Order Form to these Terms and Conditions.

6.3. We will ask for your payment details (credit/debit card) at the same time that we book the Power Flushing Service with you, and the relevant amount (depending on whether you are paying in full or by way of instalments) will be charged to your card at that time.

6.4. If you do not pay us any sum due under these Terms and Conditions when due we may charge you a late payment fee equal to 5% of the then due payment.

6.5. Customers must pre-pay by credit or debit card in the following circumstances:

- where the total amount due under the repair is over €600 (including parts and labour);
- where the part required is an Exceptional Item; or
- where the Customer does not satisfy a TMG Plumbing & Heating Services credit check (which will be determined solely at our discretion).

7. RISK NOTICE AND WAIVER

7.1. You should be aware that the Power Flushing Service will involve use of chemicals and will be carried out at high velocity but low pressure in your Central Heating System, which may cause leaks in or other damage to the pipes, radiators, the Boiler and/or other components of your Central Heating System. TMG Plumbing & Heating Services will not inspect the internal condition of your Central Heating System in advance of carrying out the Power Flushing Service. Accordingly, even if the Service Engineer confirms that the Power Flushing Service can be carried out on your Central Heating System, TMG Plumbing & Heating Services disclaims and excludes, to the fullest extent permitted by law, all representations, warranties, indemnities, guarantees and other commitments made as to the suitability of the Power Flushing Service for your Central Heating System and you agree that no representation, warranty, indemnity, guarantee or other commitment is given that the Power Flushing Service will not result in any damage to the pipes, radiators, the Boiler or any other component of your Central Heating System.

7.2. In no circumstances shall TMG Plumbing & Heating Services be responsible or liable in contract, negligence or any other tort under any law or otherwise howsoever arising, for any damage, loss, injury, liability, cost, penalty, fine or expense caused to property or persons resulting from the operation of the Power Flushing Service if such damage may reasonably be determined as being attributable in whole or in part to the pre-existing condition of the Central Heating System and you waive any and all claims against TMG Plumbing & Heating Services in respect of any such damage, loss, injury, liability, cost, penalty, fine or expense.

7.3. Nothing in this waiver purports to exclude any liability for fraud or any other liability, the exclusion of which would be contrary to Irish law.

8. WARRANTY

8.1. TMG Plumbing & Heating Services warrants that:

- the Service Engineer has the necessary skill, training, qualification and experience to carry out the Power Flushing Service the Service Engineer will supply the Power Flushing Service with due skill, care and diligence; and
- where materials are used for the purposes of carrying out the Power Flushing Service, they will be sound and reasonably fit for the purpose for which they are required.

8.2. The effectiveness of the Power Flushing Service will depend on the condition of your Central Heating System and accordingly TMG Plumbing & Heating Services makes no representation, warranty, guarantee, indemnity or other commitment that: the Power Flushing Service will be suitable for your Central Heating System; the Power Flushing Service will be effective in removing sludge

or any other element from your particular Central Heating System; or the Power Flushing Service will not result in any damage to the pipes, radiators, the Boiler or any other component of your Central Heating System.

8.3. All work undertaken by the Service Engineer while repairing the Boiler and/or Central Heating System carries a thirty (30) day recall from the date on which the work is carried out by the Service Engineer. Subject to the other provisions of this clause, if you have any problems with the Boiler and/or Central Heating System in the 30 day period after the work has been done there will be no call out charge applied if the Service Engineer has to call back to the Property. However, if, when he calls back, the Service Engineer identifies a problem with the Boiler and/or Central Heating System that is not related to the repair previously carried out, a €150 charge will be applicable and billed upon completion. The Service Engineer will advise you of the cost of the labour and any replacement parts or components necessary to rectify the matter. Subject to your signed authorisation, the Service Engineer will then fix the problem and you will be charged for the time it takes for the Service Engineer to rectify the matter and for the cost of any necessary parts or components.

8.4. With regard to the supply of any replacement parts and/or components and of any other materials supplied as part of the Power Flushing Service, we warrant that at the time of installation the replacement parts and/or components (as the case may be) and any other such materials will be of merchantable quality, and will be fit for the purpose for which they are supplied (within the meaning of section 10 of the Sale of Goods Acts, 1893 and 1980). We also warrant that, to the extent that statutory provisions apply to the Power Flushing Service, we shall comply with same.

8.5. In addition to the warranties set out in clauses 8.1, 8.2, 8.3 and 8.4 above but subject to clause 8.7 below, we will within a period of 12 months (unless otherwise specified by the manufacturer) from the date of completion of the Power Flushing Service (including repair if applicable), repair or replace free of charge any faulty replacement parts or components supplied by us under the Power Flushing Service Agreement. This shall apply only to defects which appear within a period of 12 months (unless otherwise specified by the manufacturer) from the date that the parts and/or components were replaced and provided any defect is notified to TMG Plumbing & Heating Services in writing within 21 days of when you become or ought reasonably to have become aware of the defect. Your rights under this clause 8.5 are in addition to and not in substitution of your rights at law.

8.6. You represent and warrant to us that:

a) you are the owner of the Property or have full power and authority to execute and deliver the Order Form and to comply with the provision of, and perform all of your obligations and exercise all of your rights under the Order Form and these Terms and Conditions;

b) all consents, licences, approvals and authorisations required in connection with the entry into, performance, validity and enforceability of the Order Form have been obtained and are in full force and effect; and

c) you will perform your obligations and exercise your rights under the Order Form in accordance with all applicable laws and regulations.

8.7. We will not be responsible or have any liability for:

1. The following faults or defects or any work required to rectify same (including, for the avoidance of doubt, during the 30 day recall period):

i. any defect or damage occurring from a failure of the electricity, fuel or water supply;

ii. failure of the pump due to water leaking from the isolating valves or the connecting pipework or components;

iii. any defects or inadequacy attributable to the original design of the Boiler and/or Central Heating System, including but not limited to pitching, sludging of water, limescale formation;

iv. defects or malfunctions due to faulty materials or workmanship in manufacture;

v. any defect or malfunction which arises as a result of any other cause not due to the neglect or default of TMG Plumbing & Heating Services;

vi. normal wear and tear or any deterioration in the condition, effectiveness or operation of the central heating installation, radiators, pipework, flue and flue system or any part thereof as a result of its use or the passing of time;

vii. any consequential or indirect loss suffered because of water leaks and/or a breakdown of the Boiler and the cost of putting right faults caused by damage or not using the appliance, or of interim supply of heat through other means;

viii. any defect caused through malicious or wilful action, negligence, misuse or third party interference;

ix. any defect or damage occasioned by fire, lightning, explosion, flood, storm, tempest, frost, impact or other extraneous cause;

x. any modification, adjustment or repair to the Boiler and/or Central Heating System by a third party;

xi. any defect or damage or detrimental effect to the appliance due to contamination (including by water, bacteria, sediment or sludge) of fuel or lack of fuel supply;

xii. any defect or damage or detrimental effect due to the incorrect fuel supply by a third party;

xiii. and/or

xiv. any defect or damage or detrimental effect caused as a result of inappropriate condensate discharge including to a septic tank or in contravention of the Water Pollution Acts 1977 and 1990 as amended.

2. Any loss of gas caused by third party interference and any other exclusions that are brought to your attention by us prior to the commencement of the Power Flushing Service Agreement.

9. ASSIGNMENT

These Terms and Conditions are personal to you and therefore may not be assigned or transferred by you to any other person without our prior written consent. For business reasons, we have the right to assign or transfer all of our rights and obligations under these Terms and Conditions to any other company or person.

10. CONDITION OF THE CENTRAL HEATING SYSTEM

Running the Power Flushing Service through the Central Heating System does not imply that the Central Heating System is manufactured or installed satisfactorily or to the prevailing standards or regulations. The Power Flushing Service will not remedy any design or mechanical faults in the Central Heating System. We do not accept responsibility for any inadequacy attributable to the original design or installation of the Central Heating System and make no warranty as to fitness for purpose or condition of the Central Heating System before or after provision of the Power Flushing Service.

11. USE OF SUBCONTRACTORS

We reserve the right to use sub-contractors to carry out all or any part of the works to be provided pursuant to these Terms and Conditions.

12. GENERAL LIMITATIONS OF OUR OBLIGATION

12.1. We shall not be liable if any work is carried out on your Central Heating System by any other party, other than by a sub-contractor, acting on our behalf. You agree to indemnify us and keep us indemnified in respect of any actions, claims or proceedings brought against us and all loss, damage, costs and expenses which we may incur as a consequence of any work carried out on the Central Heating System by any party other than TMG Plumbing & Heating Services without our prior written consent.

12.2. We shall not be liable if we, and/or the Service Engineers, are unable to carry out our obligations due to industrial disputes or any other cause outside our reasonable control, including but not limited to Acts of God, explosion, flood, lightning, tempest, fire or accident, war or threat of war, sabotage, insurrection, civil disturbance or disorder, acts, restrictions, regulations, by-laws, prohibitions or measures of any kind on the part of any governmental authority, import or export regulations or embargoes, defaults of suppliers or sub-contractors or any act or omission of any nature whatsoever on the part of the Customer or its agents.

12.3. We shall not be liable for any indirect, special or consequential loss you suffer arising out of or in connection with the provision or non-provision of any goods or services under these Terms and Conditions.

12.4. We have no obligation, duty or liability to you in contract, tort, for breach of statutory duty or otherwise beyond that of a duty to exercise reasonable skill and care, except that nothing herein purports to disallow liability for fraud, or liability in the event of the death or personal injury of the Customer attributed to TMG Plumbing & Heating Services and nothing herein purports to contract out of the implied undertakings as to quality of service in Section 39 of the Sale of Goods and Supply of Services Act, 1980.

13. DATA PROTECTION NOTICE

13.1. In order that TMG Plumbing & Heating Services may perform its obligations under these Terms and Conditions and provide you with an effective service, it is necessary for TMG Plumbing & Heating Services to collect and use data relating to you while you are being supplied with this service. This data is used mainly to manage our relationship with you and for the provision of the Power Flushing Service, including for example, visits to your home. In addition, data relating to you may be used for Health and Safety, administration, risk assessment, data analytics, marketing and credit checking purposes. TMG Plumbing & Heating Services may keep your data for a reasonable period after we have ceased to provide you with a service but will not keep it for any longer than is necessary and/or as required by law.

13.2. We may disclose your data to other members of the Group and agents who act on behalf of TMG Plumbing & Heating Services in connection with the activities referred to above, including to any agent or third party service provider who TMG Plumbing & Heating Services may engage to assist us in the performance of the service. Such agents or third parties are only permitted to use your data as instructed by TMG Plumbing & Heating Services. They are also required to keep your data safe and secure.

13.3. From time to time you may speak to employees of TMG Plumbing & Heating Services (or agents acting on its behalf) by telephone. To ensure that TMG Plumbing & Heating Services provides a quality service, your telephone conversations may be recorded. TMG Plumbing & Heating Services will treat the recorded information as

confidential and will only use it for staff training/quality control purposes, confirming details of your conversations with TMG Plumbing & Heating Services or any other purposes mentioned in this clause 13.

13.4. You have the right to ask for a copy of your personal data (TMG Plumbing & Heating Services is entitled to charge a nominal administration fee for this). If you wish to avail of this right, you should submit a written request to: TMG Plumbing & Heating Services – The Data Protection Officer, Unit 17F Six Cross Roads Business Park, Waterford. In order to protect your privacy, you may also be asked to provide suitable proof of identification. If any of your details are incorrect please let us know and we will amend them.

14. MARKETING

14.1. TMG Plumbing & Heating Services and the Group and/or agents acting on behalf of TMG Plumbing & Heating Services may (in accordance with any preferences that you express) wish to contact you by post, telephone, in person, text message or e-mail with information about our own products or services (relating to power flushing, leak detection) or other products and services (including those of third parties should you consent to receiving such communications) which may be of interest to you.

14.2. You may advise us of your marketing preferences when you sign up as a customer or you may opt out by:-

- calling us on 051 577089
- following the unsubscribe instructions in email or
- SMS communications to opt out of receiving further such communications
- Or by writing to us at: TMG Plumbing & Heating Services, Data Protection Opt-out, Unit 17F Six Cross Roads Business Park, Waterford

14.3. Please note that you can opt-out by marketing type (e.g. email, SMS, etc.) as we know our customers may be happy to receive one form of marketing but not another.

15. COMPLAINTS PROCEDURE

If you are unhappy with any service or contact you have with us, you can register your complaint with us in any of the following ways:

- by calling our Customer Contact Team at 051 577089;
- by email to info@tmgplumbing.ie or through our website at www.tmgplumbing.ie; or
- by letter to Customer Care, TMG Plumbing & Heating Services, Unit 17F Six Cross Roads Business Park, Waterford .

16. QUALITY AUDITING

TMG Plumbing & Heating Services may request to carry out random quality audits on the work carried out at your Property both during the Power Flushing Service and after completion of the Power Flushing Service. TMG Plumbing & Heating Services will notify you by telephone of any such request. All TMG Plumbing & Heating Services engineers and supervisors carry identification which will be displayed to you on arrival at the Property.

17. NOTICE OF HAZARD

17.1. We may issue a Notice of Hazard as per IS:813 2002 edition 2 (including Amendment 1:2004 and Amendment 2:2005). and/or the manufacturer's instructions in a number of different circumstances including, without limitation, where, in the opinion of the Service Engineer, (i) Level A: the appliance installation does not conform to standard but is safe to continue to use pending rectification; (ii) Level B: the appliance installation does not conform to standard and is considered unsafe and requires immediate isolation of the appliance pending rectification; (iii) Level C: the complete installation is unsafe for continued use and requires immediate isolation at the meter pending rectification.

17.2. In circumstances where we have issued a Notice of Hazard where we have not been in a position to fully inspect/test any part of the installation of the Boiler we will not accept any responsibility or liability for the quality or condition of the Boiler and for any loss or damage arising out of or in connection with the issuance of a Notice of Hazard by us.

17.3. Where we have issued a Notice of Hazard identifying remedial action in respect of the Boiler but, in the opinion of the Service Engineer, it is safe to continue with the Power Flushing Service without you first taking the recommended remedial action, it is solely your responsibility to take the recommended remedial action following the Power Flushing Service. We will, if possible, provide you with an estimate of the likely time required and cost involved to complete the recommended remedial action. It may also be possible to make arrangements with the Service Engineer for this recommended remedial action to be carried out by us at a later date.

17.4. Where, in the opinion of a Service Engineer there is a Health and Safety or non conformance to standard issue (which will be detailed in the Notice of Hazard where relevant) in respect of the Boiler that means it is inappropriate, unsafe or otherwise unsuitable for the Order Form to continue, we may terminate this Power Flushing Service Agreement. In such circumstances, we will charge you a cancellation fee equal to €30. We reserve the right to contact the relevant local authority if we consider it necessary in the interest of the Health and Safety of you and/or third parties.

17.5. We are not liable or responsible for any losses, liabilities, costs, penalties, fines, damages, defects or personal injuries arising out of or in connection with your decision

not to carry out any remedial work recommended to you in a Notice of Hazard or to take any advice given to you by the Service Engineer and/or notified to you in a Notice of Hazard. You agree to indemnify us and keep us indemnified in respect of any losses, liabilities, costs, penalties, fines, damages, expenses, actions, claims or proceedings arising out of or in connection with any claim brought made or threatened by a third party against us relating to or in connection with your decision not to carry out any remedial work recommended to you by us in a Notice of Hazard or to take any advice given to you by the Service Engineer and/or notified to you in a Notice of Hazard.

18. DANGEROUS WASTE MATERIALS

Should we find asbestos or other dangerous or potentially dangerous waste materials in or around the Property, then you will need to engage a specialist competent contractor to arrange for the removal of such dangerous waste material before the Power Flushing Service may proceed or continue. When you have had all asbestos removed, a certificate from the specialist competent contractor certifying the absence of asbestos exposure risk as referred to in the Safety Health and Welfare at Work (Exposure to Asbestos) Regulations 2006 (or any amendment thereof or replacement Regulations), must be provided to us before we will do any further work to your Property.

19. GENERAL

19.1. Notices: Any notice or account sent by ordinary post pursuant to these Terms and Conditions shall be deemed to have been received two days after the day of posting. Any notice sent by the Customer by electronic mail shall be deemed to have been received upon confirmation of receipt from TMG Plumbing & Heating Services by electronic mail or by post. Any notice required or permitted to be given by the Customer shall be in writing addressed to TMG Plumbing & Heating Services Boiler Services, Unit 17F Six Cross Roads Business Park, Waterford or such other address or electronic mail address as may be provided to the Customer by TMG Plumbing & Heating Services from time to time.

19.2. Amendments: We reserve the right to change the Terms and Conditions applicable to the Power Flushing Service at any time. We will publish details of any changes on the TMG Plumbing & Heating Services website at www.tmgplumbing.ie as soon as is reasonably possible prior to the changes being introduced.

19.3. No waiver: No forbearance, indulgence or relaxation on the part of TMG Plumbing & Heating Services shown or granted to the Customer shall in any way affect, diminish, restrict or prejudice the rights or powers of TMG Plumbing & Heating Services provided by the Order Form or by law or operate as or be deemed to be a waiver of any breach, right or remedy under the Order Form or provided by law.

19.4. Severance: If at any time any provision of the Order Form (or any part of a provision of it) is or becomes illegal, invalid or unenforceable in any respect under the law of any jurisdiction, that shall not affect or impair:

- the legality, validity or enforceability in that jurisdiction of any other provision of the Order Form (including the remainder of a provision, where only part thereof is or has become illegal, invalid or unenforceable); or
- the legality, validity or enforceability under the law of any other jurisdiction.

19.5. Governing Law: These Terms and Conditions shall be governed by and construed in accordance with Irish law. The Parties irrevocably submit to the exclusive jurisdiction of the courts of Ireland.

19.6. Entire Agreement: The Parties acknowledge that these Terms and Conditions and the Order Form constitute the complete agreement between the Parties and supersede all and any prior understandings, agreements, representations or communications whether written or oral between the Parties relating to the subject matter hereof.

20. GLOSSARY

Wherever the following words and phrases appear in the Order Form or in these Terms and Conditions, they will have the following meaning:

“Boiler” means a boiler on which the Power Flushing Service is to be carried out;

“TMG Plumbing & Heating Services”, “us” or “we” means TMG Plumbing & Heating Services where the context so permits unless the contrary intention appears, its authorised agents and

subcontractors;

“Central Heating System” means the Boiler, associated pipes and controls and radiators;

“Customer” or “you” means the customer(s) who asks us to carry out the Power Flushing Service for them, and includes a person who we reasonably believe is acting with the customer’s authority or knowledge;

“Exceptional Item” means a spare part which is not generally in stock and has to be ordered specially for the repair;

“Health and Safety” means matters relating to:

(a) the applicable requirements of health and safety legislation in Ireland including, but not limited to, the Safety Health & Welfare at Work Act 2005 (as amended from time to time) and any regulations made there under from time to time;

(b) the Building Control Acts 1990 and 2007 and any relevant Building Regulations made there under and any Building Regulations Technical Guidance Documents;

(c) all relevant Codes of Practice, Guidelines and technical documentation/specifications prepared by the National Standards Authority of Ireland and regional requirements for Ireland;

(d) all relevant Codes of Practice, Guidelines and technical documentation/specifications prepared by ETCI;

(e) System Supplier/Product Manufacturer Instructions and Guidelines; and

(f) all relevant installation standards applicable in Ireland, including, without limitation, IS 813:2002 (including Amendment 1:2004 and Amendment 2:2005); and

(g) industry best practice;

“IS” means Irish Standard or, where appropriate, applicable European Standard for the Power Flush Service as laid down by the National Standards Authority of Ireland, as amended or replaced from time to time, and any reference in these terms and conditions to a specific provision of IS or of an applicable European Standard shall be a reference to such provision as amended or replaced from time to time;

“New Divisions” has the meaning given to it in clause 19.6;

“Parties” means us and you;

“Property” means the address at which we will carry out the Power Flushing Service;

“Power Flushing Service” means the service described in clause 1 which shall include a repair, where applicable throughout this Agreement;

“Power Flushing Service Agreement” means the contract between you and us for the provision of a Power Flushing Service which is subject to the Terms and Condition together with the information and terms included in the Order Form;

“Order Form” means the Power Flushing order form or the agreed quotation between you and us which incorporates these Terms and Conditions are appended;

“Service Engineer” means a qualified and experienced engineer engaged by TMG Plumbing & Heating Services to carry out the Power Flushing Service;

“Terms and Conditions” means the terms and conditions in respect of the Power Flushing Service including the Order Form; and

“VAT” means value added tax at the applicable rate from time to time.